Intellectual Property & Privacy (IPP)

JM0160

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Lecture 6: Database Protection

Knowledge Clip 6.1: Introduction to EU Copyright Law



Different types of IP rights: Subject matter

Copyright (author's rights)
Literary/ artistic/scientific expression

E.g., stories, songs, software, databases

***Sui generis* database right**

Databases

Trade Secret Protection

Confidential business information

E.g., Product formulas and recipes, algorithms, compilations of information (databases)

IPRs

Patent rights
Inventions

E.g., pharmaceutical products, functional features of machines, industrial processes & methods.

Trademarks

Commercial signs denoting source and origin of products

Design rights

Product designs



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Recap: How to analyze legal rights

Subject-matter	*What* is protected?
Criteria	*Which* criteria (conditions) need to be fulfilled for the subject-matter to obtain protection?
Scope	*How* is the subject-matter protected (i.e. what uses of the subject-matter require rightholder's authorization)?
Ownership	*Who* is the owner of the right (who is the rightholder)?
Duration	*For how long* is the subject-matter protected (what is the term of protection)?
Exceptions	*What* acts can be carried out without the rightholder's permission?



Subject-matter

Literary, artistic, scientific **expression** (“work") that is the product of human (?) intellect.
A work is a creative combination of elements such as words, sounds, shapes or colors.

Criteria

Sole criterion: Originality (expression must be its **A**uthor’s **O**wn **I**ntellectual **C**reation (***AOIC*** standard of originality).

How to test whether the AOIC standard of originality is fulfilled:
The expression must reflect the author’s **personal creative choices** leading to his **personal touch being stamped** on the expression.

- Creator has had the freedom to engage in his own (arbitrary) creative decision-making.
  - AOIC standard will **not** be fulfilled when the creation process is dictated by technical or functional considerations, rules or restrictions thereby leaving no space for the exercise of free and creative choices.

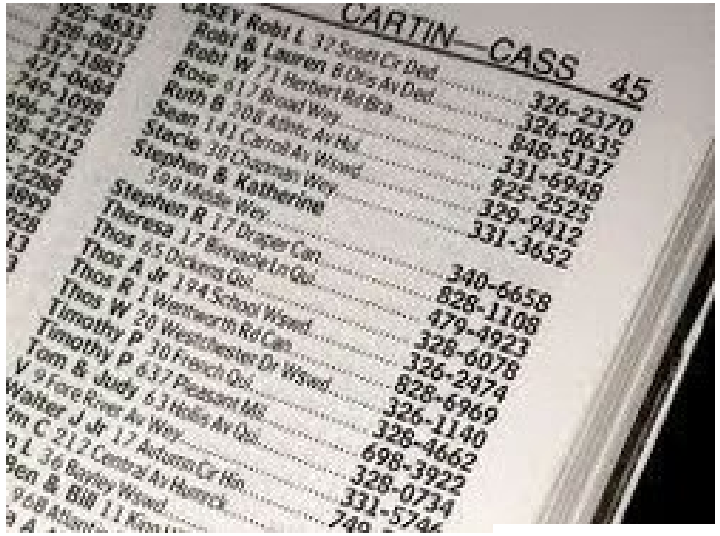
- **Creator has used this freedom to make personal creative choices in creating the expression.** By reason of the creator making his personal creative choices the expression is stamped with the creator’s personal touch.
  - Mere expenditure of **skill, labour and know-how** is **insufficient** for fulling AOIC standard of originality!

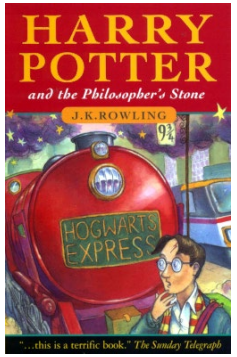
Would the following qualify for copyright protection?

THE SORTING HAT

- Harry had never even imagined such a strange and splendid place. It was lit by thousands and thousands of candles which were floating in mid-air over four long tables, where the rest of the students were sitting. These tables were laid with glittering golden plates and goblets. (..) The hundreds of faces staring at them looked like pale lanterns in the flickering candlelight. Dotted here and there among the students, the ghosts shone misty silver. (..) Harry looked upwards and saw a velvety black ceiling dotted with stars. (..) It was hard to believe there was a ceiling there at all, and that the Great Hall didn't simply open on to the heavens.

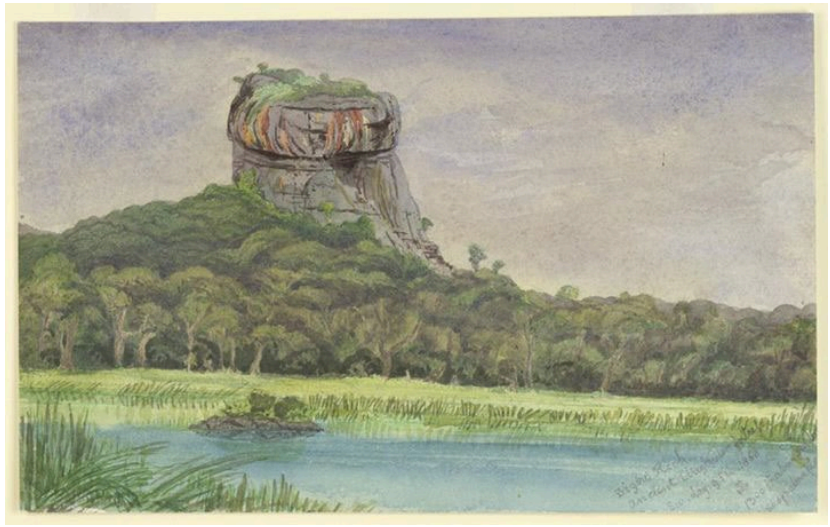
(From Harry Potter and the Philosopher's Stone by J.K. Rowling. In Freddi, M. *Functional Grammar: An Introduction for the EFL student*.)



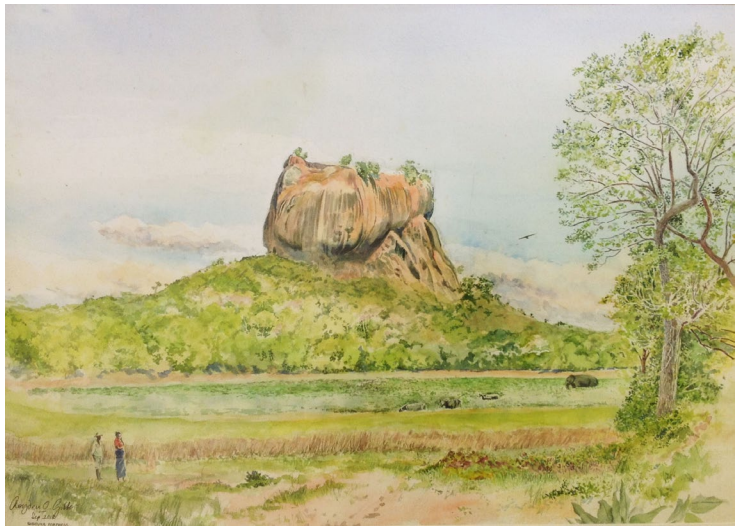




Originality is different from novelty!



Sigiriya, Sri Lanka by Stanley Leighton



Sigiriya, Sri Lanka by Royden Gibbs

Copyright does not protect a mere *idea*, only the way an idea is *expressed*

Idea-expression dichotomy of copyright law

Idea

Painting of a girl reading a book in a garden on a Summer's day.

Expression



Winslow Homer High



Edward Perrugini



David Hettinger

Ownership

Author: Person whose own intellectual expression is reflected in the “work”.

When the work is created in the course of employment, the employer can be designated as the owner of copyright by default (but the rules differ across Member States).

Duration

During the lifetime of author + 70 years.



Scope

EU Copyright in the Information Society Directive (2001)

- Article 2: Direct or indirect, temporary or permanent **reproduction** by any means and in any form, in whole or in part (includes adaptation or modification, i.e., the creation of derivative works based on the protected works).

- Article 3: **Communication to the public** and **making available to the public.**

- Article 4: **Distribution** to the public by sale or otherwise.

Exceptions

Article 5 provides a "closed-list" of exceptions.

Article 5(1): Temporary acts of reproduction referred to in Article 2, which are **transient or incidental** [and] an **integral and essential** part of a technological process and whose sole purpose is to enable:
(a) a transmission in a network between third parties by an intermediary, or (b) a lawful use, **which have no independent economic significance**, shall be exempted from the reproduction right provided for in Article 2.





The end!

Proceed to KC 6.2. Introduction to Database Protection